SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Civil Appeal No. 7192 of 2021 (YEAR: 2022)

CORAM: L. NAGESWARA RAO, B.R. GAVAI, B.V. NAGARATHNA

Renaissance Hotel Holdings Inc.
... Appellant(s) / Petitioner(s)
Versus
B. Vijaya Sai
... Respondent(s)

Acts Referred:	Trade Marks Act, 1999
Sections:	Section 29 Trade Marks Act

JUDICIAL HEADNOTE & SUMMARY

Held that once a registered trademark is used identically in relation to identical goods or services, trademark infringement is established under Section 29 without requiring proof of actual confusion.

RATIO DECIDENDI

The Court held that: Held that once a registered trademark is used identically in relation to identical goods or services, trademark infringement is established under Section 29 without requiring proof of actual confusion. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Renaissance Hotel Holdings Inc. v. B. Vijaya Sai (Civil Appeal No. 7192 of 2021) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Trade Marks Act, 1999, particularly Section 29 Trade Marks Act. Held that once a registered trademark is used identically in relation to identical goods or services, trademark infringement is established under Section 29 without requiring proof of actual confusion.

OPERATIVE ORDER

ORDER: Decided